

Om Prakash v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · Writ-C No. 3935 of 2022 · **Writ disposed; liberty to object under para 6.8; coercive action stayed.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a challenge to a distribution-company demand notice by granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until the objection is decided.

FACTUAL SUMMARY

Om Prakash, a consumer of Madhyanchal Vidyut Vitran Nigam Ltd., petitioned the Allahabad High Court to quash a demand notice dated 18 September 2021 and for a mandamus to decide the matter afresh in light of his reply dated 5 October 2021. Counsel for the distribution company stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ by granting liberty to submit an objection to the impugned demand under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; directed respondent no. 2 to decide any such objection in accordance with law, expeditiously and preferably within the next four weeks, after affording a reasonable opportunity of hearing; and restrained coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ challenging the demand was disposed of without a merits adjudication by relegating the consumer to a para 6.8 objection, to be decided in accordance with law after hearing. ¶ 1

fresh-objection-under-clause-6.8 Despite an existing reply dated 5 October 2021, the Court granted liberty to submit an objection under para 6.8 within four weeks of the order. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Coercive recovery on the demand was stayed for eight weeks or until disposal of the para 6.8 objection, whichever earlier, while the licensee was directed to decide the objection after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 18.09.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1